



POLICE DEPARTMENT

August 26, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202404025 (Incident Date: March 7, 2024) regarding Police Officer Cam Ates. Tax No. 952428 (PODS Case No. C-034956)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202404025, pertaining to Police Officer Cam Ates. Having analyzed the facts and circumstances regarding this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this matter, after a review of the available video evidence, the Police Commissioner determined that CCRB failed to establish its burden of proof. The BWC footage does not capture the respondent telling a bystander, "Don't record." At no point does the respondent interfere with the bystander using his cellular telephone. Simply gesturing to the individual to "keep going" does not indicate that the respondent interfered with his right to record. The individual could have easily walked a few steps out of the pedestrian path on the sidewalk and record the incident if he wished to do so. Additionally, CCRB's investigative report states, it was reasonable for the respondent to tell the individual to keep moving because he stopped in a pedestrian walkway, and other pedestrians had to walk around him into the bike lane to pass.

Furthermore, Police Officer Ates has no formal disciplinary history or prior substantiated CCRB allegations. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the alleged misconduct.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 2, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202404025 (PODS Case No. C-034956)

Dear Commissioner:

I am writing in response to the letter from Assistant Chief Michael P. Baker, dated August 26, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against Police Officer Cam Ates and issue no discipline for the alleged interference with a recording bystander. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Assistant Chief Baker’s notification.

Assistant Chief Baker stated that you analyzed the facts and circumstances of this matter and determined that to pursue Charges and Specifications against Police Officer Ates would be detrimental to the Police Department’s disciplinary process. Instead, you intend to dismiss the charge and impose no penalty for the alleged interference with a recording bystander.

The CCRB respectfully disagrees with your assessment. Officer Ates’ Body-Worn Camera at time 3:47 clearly records Officer Ates telling the individual, “Don’t record”, after which the complainant is heard asking Officer Ates why he told the individual that he couldn’t record. Police Officer Ates’s misconduct was captured on Body-Worn Camera, fully supported by the evidence, and warrants the serving of Charges.

The CCRB disagrees with your assessment and requests that the NYPD serve Charges and Specifications upon Police Officer Ates.

Respectfully submitted,

Andre D. Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 3, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202404025 (Incident Date: March 7, 2024) regarding Police Officer Cam Ates, Tax No. 952428 (PODS Case No. C-034956)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 2, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Cam Ates, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Ates for the reasons expressed in my August 26, 2025, letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed for the alleged violation of Administrative Guide Procedure 304-21 (When a Member of the Service Encounters an Individual Observing, Photographing, and/or Recording Police Activity).

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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